

HEADNOTE

- “1. Granting an application to change or amend the case cannot be allowed if the amendment could have been foreseen from the outset of the proceedings. Granting such an application later in the proceedings would mean allowing the applicant to change its strategy.*
- 2. That the applicant of an application to change or amend the case (in particular, requesting to allow new auxiliary requests to align them with proceedings before the EPO) may have to initiate new UPC proceedings, taking into consideration the auxiliary requests introduced before the Opposition Division or Board of Appeal of the EPO but not allowed by the Court (UPC), might indeed be the case. The fact that the applicant itself did not abide by the principles of procedural efficiency cannot be invoked by that same applicant as a reason to allow to change or amend the case, taking into consideration the stage of the proceedings.*
- 3. The applicant of an application to change or amend the case (in particular requesting to allow new auxiliary requests in the proceedings) must convince the Court of the "connection" between the changes to be made in the auxiliary requests and the specific arguments of the”*

COURT
Local Division in Brussels

PROCEEDINGS
Counterclaim for revocation

PATENT
EP 3 732 827

METHOD AND SYSTEM FOR
MAKING FUNCTIONAL DEVICES
AVAILABLE TO PARTICIPANTS OF
MEETINGS

KEYWORDS

Leave to change claim or amend case (R. ...

Application to amend the patent (R. 30 RoP)

Interplay between UPC-proceedings and E...

SUMMARY

The Local Division in Brussels ruled on a counterclaim for revocation. The patent at issue relates to a method and system for making functional devices available to participants of meetings. According to the headnotes of the decision, a party cannot amend its case later in proceedings by introducing changes that could have been anticipated from the start, as doing so would effectively allow that party to shift its litigation strategy mid-course. The court will not permit a party to file new auxiliary requests simply because those requests were rejected in parallel EPO proceedings, nor can a party use its own failure to observe procedural efficiency as justification for late amendments. An applicant seeking to introduce new auxiliary requests must demonstrate a genuine connection between the proposed changes and the specific arguments already raised in the proceedings.